



General Services Administration
Public Buildings Service

MEMORANDUM TO FILE (TAB 4)

SUBJECT: LIMITED SOURCE JUSTIFICATION under FAR 8.405-6(c) Restricted Consideration of FSS Sources on Orders Exceeding the Simplified Acquisition Threshold

PROJECT: Complete Facilities Maintenance (O&M) Services

United States Institute of Peace (USIP) Headquarters Building
2301 Constitution Avenue
NW, Washington, DC 20037

I. Identification of the agency and the contracting activity, and specific identification of the document as a "Limited-Sources Justification"

U.S. General Services Administration, Public Buildings Service, Acquisition Center for Facilities Management Services, is executing a Limited-Sources Justification for the emergency procurement of Complete Facilities Maintenance Services for the USIP building.

II. Nature and/or description of the action being approved

The U.S. General Services Administration (GSA), Public Building Service (PBS), National Capital Region (R11) has an urgent and compelling need for Complete Facilities, Operations and Maintenance Services, inclusive of elevator, custodial services at the United States Institute of Peace (USIP) Headquarters Building in Washington, DC.

III. A description of the supplies or services required to meet the agency's needs (including the estimated value)

The contractor shall provide management, supervision, labor, materials, equipment, and supplies and is responsible for the efficient, effective, economical, and satisfactory operation, scheduled and unscheduled maintenance, and repair of equipment and systems, and custodial services located in Washington, DC.

The United States Institute of Peace (USIP) Headquarters Building, located at 2301 Constitution Avenue, was unexpectedly acquired as part of the General Services Administration real estate portfolio as of April 3, 2025. This acquisition was not originally contemplated by GSA. However, as a result of Executive Order 14217, "Commencing the Reduction of the Federal Bureaucracy," USIP was ordered to eliminate the non-statutory components and functions of the entity to the maximum extent consistent with applicable law, and reduce the performance of their statutory functions and associated personnel to the minimum presence and function required by law. In light of this, the building was transferred to GSA.

The building consists of approximately 274,000 gross square feet, and is considered premium office and event space in the National Capital Region. The USIP campus also includes two 100-year-old federal buildings, the Bush and Clinton buildings, that are connected to the USIP headquarters by a walkway named the John Warner Peace Bridge and included within the scope of services. It is paramount that the building systems are maintained in alignment with their current “excellent” condition. The expectation is that the current building services contract is being terminated. Therefore GSA has been directed to obtain replacement services immediately or risk irreparable harm to the building systems that would incur substantial cost for repair and replacement.

As a result, urgent and compelling circumstances exist requiring GSA to pursue a vendor by means other than full and open competition to obtain O&M services within this building in order to properly maintain the building and continue mission critical operations without any disruptions or loss.

As a result of this unanticipated acquisition of this building, GSA has limited knowledge of the systems and overall condition of the building, but has assumed operation control of the building as of April 3, 2025. Due to the lack of historical information for this facility and its systems, GSA must work with a highly qualified vendor to assess the systems to assure the requirements meet the needs of the building.

The aforementioned urgent and compelling circumstances for this requirement exempt GSA from the full and open competition requirements under the identified statutory authority. The estimated value of this acquisition is \$1,602,788.16 for one year of performance.

IV. The authority and supporting rationale (see 8.405-6(a)(1)(i) and (b)(1)) and, if applicable, a demonstration of the proposed contractor’s unique qualifications to provide the required supply or service

The authority for this limited source justification is FAR 8.405-6(a)(1)(i)(A) “an urgent and compelling need exists, and following the procedures would result in unacceptable delays.”

The Contracting Officer has identified Northern Management as a contractor capable of performing the required services at a high standard of performance within the truncated timeline necessary for this procurement. Northern has consistently provided quality facility operations, maintenance, and related services for many years and is currently providing GSA similar services at both the 1800F Headquarters and the 7th and D Regional Office Building in Washington DC. These locations are in close proximity to the USIP, allowing Northern to leverage its workforce at those locations to provide immediate service to the USIP facility. These employees have gone through the HSPD-12 clearance process and are approved to immediately support GSA buildings. Northern has consistently demonstrated its unique understanding of GSA O&M requirements to commit the necessary resources for immediate phase-in of services while maintaining compliance with contract requirements. It has the necessary resources readily available for systems operations and immediate equipment assessment at the USIP location. Due to the urgent and compelling circumstances for services to begin immediately, a BPA Call will be issued under BPA 47PD0120A0002 to provide Consolidated Facilities Management services for the USIP building.

V. A determination by the ordering activity contracting officer that the order represents the best value consistent with 8.404(d)

Services offered on the schedule are priced either hourly rates, or at fixed price for performance of a specific task such as operation and maintenance and repairs. GSA has already determined the prices of fixed-price services and rates for services offered at hourly rates, under the schedule contract to be fair and reasonable. Therefore, ordering activities are not required to make a separate determination of fair and reasonable pricing, except for a price evaluation as required by 8.405-2(d). By placing an order against a schedule contract using the procedures in 8.405, the ordering activity has concluded that the order represents the best value (as defined in FAR 2.101) and results in the lowest overall cost alternative (considering price, special features, administrative costs, etc.) to meet the Government's needs. Although GSA has already negotiated fair and reasonable pricing, ordering activities may seek additional discounts before placing an order against the BPA contractor.

VI. A description of the market research conducted among schedule holders and the results or a statement of the reason market research was not conducted

In an effort to mitigate potential damages and to minimize the unavoidable gap in service caused by the short-notice of the procurement of this location, GSA has determined that a full and open solicitation is not feasible. The urgency of the requirement compelled market research to be limited to reviewing existing contracts and contacting Northern Management of their interest in submitting a quote under their awarded BPA due to their current presence in the local area and their expertise in facilities maintenance for GSA buildings.

VII. Any other facts supporting the justification

Recent market research within the NCR for the procurement of a similarly situated newly acquired building in the District of Columbia, resulted in GSA receiving minimal interest in response. In response to this market anomaly, GSA contacted several vendors and was specifically informed that due to the current Government re-alignment, and limited building information, vendors expressed reluctance to proceed with new requirements at the current time citing increased risk to them resulting from the programmatic shift. As a result of this market information, Northern's availability and willingness to proceed, despite limited building information, uniquely qualifies them for this urgent and compelling procurement.

The government is heavily dependent on the contractor personnel to operate and maintain government facilities. Failure to have qualified individuals available to operate facilities creates great risk of failure of government equipment.

The current O&M vendor supporting the USIP building will be evacuating it within the next few weeks. The absence of services that are currently being provided would likely compromise the health and safety of employees as well as the general public and damage critical equipment within the facilities.

VIII. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made

There was not sufficient time to make this acquisition available for competition. This action allows GSA to adequately develop, solicit, and award a new competitive contract. Once this BPA call order is in place, GSA will begin the procurement process to award a competitive

replacement contract. Future procurements will be closely monitored to ensure early planning and execution of replacement contracts are in place prior to the expiration of the existing contract.

IX. The ordering activity contracting officer's certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief

I, Jonathan Post, as the Contracting Officer certifies that the information contained within is accurate and true to the best of my knowledge.

X. Evidence that any supporting data that is the responsibility of technical or requirements personnel (e.g., verifying the Government's minimum needs or requirements or other rationale for limited sources) and which form a basis for the justification have been certified as complete and accurate by the technical or requirements personnel

The Facilities Modernization Office (FMO) is responsible for technical requirements for a Full Maintenance contract. The Subject Matter Experts (SME) have provided the data and documents needed for continued support and attests with their signature below that the information provided is accurate and true to the best of their information, knowledge, and belief.

XI. For justifications under 8.405-6(a)(1), a written determination by the approving official identifying the circumstance that applies

Unusual and Compelling Urgency due the sudden acquisition of this building. GSA has limited knowledge of the systems and overall condition of the building, but has assumed operation control of the building as of April 3, 2025. Due to the lack of historical information for this facility and its systems, GSA must work with a highly qualified vendor to assess the systems to assure the requirements meet the needs of the building. It is imperative that GSA establish the subject contract to avoid serious harm to critical building systems that would detrimentally alter the substantial value of the facility. Delay in establishing a contract for these services will result in potentially irreparable financial injury to the Government.

The aforementioned urgent and compelling circumstances for this requirement exempt GSA from the full and open competition requirements under the identified statutory authority.

Contracting Officer Certification:

I hereby certify that the above information is accurate and complete to the best of my knowledge.



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Jonathan Post

Contracting Officer, NCR Team Lead (3PQ2CN)

4/10/2025

Date

Technical/Requirements Certification:

I certify that the facts and representations under my cognizance which are included in this justification and which form a basis for this justification are complete and accurate.



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Rhonda Contee
Program Manager, OFM (WPMB)

4/10/2025

Date

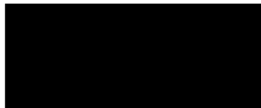
Concurrences:



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Mark Talarico
Branch Chief, NCR (3PQ2C)

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Date



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Stephanie Hill
Director, ACFMS (3PQ2)

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Date



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Robert Notigan
Regional Counsel (LD3)

4/10/2025

Date

Approved by:



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Renee Domurat
Competition Advocate (3PR)

4/10/2025

Date